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Case Number: 25AVCV00139 Hearing Date: June 30, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

HAGOP BARTOUMIAN, an individual,

Plaintiff and Cross-Defendant,

v.

MARTIAL SIMONE ETAME, an individual,

Defendant and Cross-Complainant.

Case Number

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: June 30, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a breach of contract case arising from Defendant Martial Simone Etame's (Etame) purchase of real property from Plaintiff Hagop Bartoumian (Bartoumian).

On January 31, 2025, Bartoumian filed a Complaint against Etame, asserting causes of action for (1) breach of contract, (2) declaratory relief, and (3) ejectment. Bartoumian alleges that on or about April 8, 2023, a written agreement (Agreement) was made between the Hagop Bartoumian Living Revocable Trust (Trust) and Etame for the lease and purchase of real property located at 12904 E. Ave. W8, Pearblossom, CA 93553 (Property). (Compl., Cause of Action Attachment, Ex. A.) Bartoumian further alleges that on or about June 2023, Etame failed to honor the \$50,000.00 initial deposit and the monthly installment payment of \$1,000.00 resulting in escalating damages, then totaling \$12,000. (Ibid.) Bartoumian further claims Etame has provided no evidence of the required insurance for the property in violation of the lease and purchase agreement. (Ibid.)

On August 25, 2025, Bartoumian filed a Request for Entry of Default against Etame. The same date, Etame filed an Answer and a First Amended Cross-Complaint (FACC). The clerk rejected Bartoumian's Request for Entry of Default in light of Etame's filed Answer.

Etame's FACC asserts causes of action against Bartoumian for (1) false advertising and (2) fraud.

On February 13, 2026, the Court ordered Bartoumian to file a responsive pleading to the cross-complaint on or before February 20, 2026. (Minute Order dated February 13, 2026.)

On February 23, 2026, Bartoumian filed his Demurrer to the FACC.

On April 6, 2026, Etame filed his Opposition to Bartoumian's Demurrer.

No reply has been filed.

II. Preliminary Procedural Issues

Meet and Confer Requirement – Before filing a demurrer, the demurring party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).)

Bartoumian, as the demurring party, failed to satisfy the meet and confer requirement. Bartoumian filed no declaration, stated no facts, provided no information, and offered no evidence that he attempted to meet and confer with Etame prior to the filing of his Demurrer. As such, the meet and confer requirement is not satisfied.

However, a determination that the meet and confer process was not sufficient is not grounds to overrule a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).) Accordingly, the Court will consider the Demurrer on the merits notwithstanding his noncompliance.

Timeliness of Bartoumian's Demurrer – A person against whom a cross-complaint has been filed may demur to the cross-complaint within 30 days after service of the cross-complaint. (Code Civ. Proc., § 430.40, subd. (a).)

The Court directed Bartoumian that he had through February 20, 2026 to file his responsive pleading to Etame's FACC. (Minute Order dated February 13, 2026.) The present Demurrer was not filed until February 23, 2026.

The Court finds that this Demurrer is untimely. However, the Court notes that the proof of service attached thereto states that the Demurrer was served on Etame on February 15, 2026. Given the apparently timely service, Etame's timely Opposition, and Etame's lack of objection, the Court finds that the late filing does not prejudice Etame or otherwise affect his substantial rights. In the interests of determining the present issue on the merits, the Court will consider and rule on the Demurrer.

Identification of Grounds for Demurrer – "A demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded." (Code Civ. Proc. § 430.60.) "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." (Cal. Rules of Court, rule 3.1320(a).)

Bartoumian's Notice of Demurrer identifies three grounds for his Demurrer: (1) the Cross-Complaint fails to state facts sufficient to constitute a cause of action, (2) the Cross-Complaint is uncertain, ambiguous, and unintelligible, and (3) the claims are barred by the written contract. The Demurrer itself identifies the same three grounds, "generally demurs to the entire complaint," and claims "[t]he Cross complaint is barred." (Demurrer, p. 3, ¶¶ 1-3.) The Court notes that the grounds for demurrer as set forth are somewhat unclear. The grounds identified in the Demurrer establish that Bartoumian demurs to the entire Cross-Complaint, but are put forth under a heading which reads: "DEMURRER TO PLAINTIFF'S FIRST CAUSE OF ACTION". Notwithstanding this heading, neither the Notice of Demurrer nor the demurrer itself properly set forth specific grounds on which he demurs to the first or second causes of action individually.

Thus, to the extent the Bartoumian seeks to dismiss any individual cause of action less than the entire Cross-Complaint, the Demurrer is procedurally defective and incapable, as it fails to comply with California Code of Civil Procedure section 430.60 and California Rule of Court rule 3.1320, subdivision (a). Because Bartoumian demurs with the requisite specificity only to the Cross-Complaint in its entirety, if Bartoumian's Demurrer is overruled as to one cause of action, it will be overruled as to all.

III. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc., § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) Courts must "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

IV. Discussion

Application – Bartoumian demurs to the FACC pursuant to California Code of Civil Procedure, sections 430.10, subdivisions (e) – (f), on the grounds that (1) the FACC fails to state facts sufficient to constitute a cause of action, (2) the FACC is uncertain, ambiguous, and unintelligible, and (3) the claims asserted are barred by the written contract attached to and incorporated by reference in Bartoumian's Complaint and the lack of exhibits and evidence shown in the FACC. (Notice and Demurrer, p. 1:25-2:5; 3:16-18.) In opposition, Etame argues the demurrer should be overruled because it attempts to resolve disputed factual issues and challenges the sufficiency of well-pleaded fraud allegations and the FACC clearly and sufficiently states a cause of action for fraud. (Opp., p. 2:1-2, 23-24.)

a. Uncertain, Ambiguous, and Unintelligible

Bartoumian specially demurs to the FACC in whole pursuant to California Code of Civil Procedure, section 430.010, subdivision (f) on the grounds that it is uncertain, ambiguous, and unintelligible. (Demurrer, p. 13:6-9.) Specifically, Bartoumian notes the FACC inconsistently refers to "Plaintiff" and "Defendant", it blends affirmative defenses with causes of action, and it fails to specify dates, statements, or documents. (Ibid.)

"A defendant may demur to a complaint... on the ground that the 'pleading is uncertain.' (Code Civ. Proc., § 430.10, subd. (f).) The term 'uncertain' includes 'ambiguous' and 'unintelligible.' (Ibid.)." (Van Horn v. Dep't of Toxic Substances Control (2014) 231 Cal. App. 4th 1287, 1295.) A "[d]emurrer for uncertainty is directed at the allegations actually made. [Citation.] Demurrer for uncertainty does not lie as to immaterial matter. [Citation.] Nor will a demurrer for uncertainty lie where the facts are presumptively within the knowledge of the demurring parties. [Citation.]" (Dumm v. Pac. Valves (1956) 146 Cal. App. 2d 792, 799.) "A special demurrer on the ground that an answer is (a) ambiguous, (b) unintelligible, or (c) uncertain is insufficient unless the demurrer points out specifically wherein the pleading is ambiguous, uncertain or unintelligible. [Citation.]" (Coons v. Thompson (1946) 75 Cal. App. 2d 687, 690 (citation omitted).)

Here, Bartoumian does not specify where in the FACC the pleading is ambiguous, uncertain, or unintelligible. Furthermore, the FACC refers to the parties by name, by Plaintiff or Defendant, by Complainant, or by Cross-Complainant and Cross-Defendant, respectively. While the identifiers are used interchangeably throughout the FACC, it is not so unintelligible that Bartoumian is not on clear notice of who a specific claim, allegation, or sentence is brought against or otherwise referring to. Finally, the Court is unaware of any requirement that a complaint must refer to specific documentary evidence, and the dates omitted from the FACC are presumptively within the knowledge of Bartoumian as the demurring party.

The Court does not sustain Bartoumian's demurrer on this ground, as the FACC is sufficiently clear and unambiguous as to the factual allegations and the causes of action, placing Bartoumian on sufficient notice of the specific causes of action he must defend against.

b. First Cause of Action – False Advertising

As to Etame's first cause of action for false advertising, Bartoumian argues in support of his demurrer that the FACC does not plead a specific statutory basis or that Bartoumian was engaged in a business or public advertising campaign as required pursuant to Business and Professions Code section 17500. (Demurrer, p. 5:20-22.) Bartoumian further argues that the Agreement attached to his Complaint controls where the contractual language contradicts allegations made by Etame, and that such allegations must be disregarded because the contractual provisions are judicially noticeable. (Demurrer, p. 6:10-13.)

i. Failure to State Facts Sufficient to Constitute a Cause of Action

California Business & Professions Code section 17500 states, in relevant part, that it is unlawful for any person with intent to directly or indirectly dispose of real property to make or disseminate any statement concerning that real property which is untrue or misleading and which is known or should be known through exercise of reasonable care, to be untrue or misleading, through any advertising device. The statute is broadly construed, covering "not only advertising which is false, but also advertising which[,] although true, is either actually misleading or which has a capacity, likelihood or tendency to

deceive or confuse the public.” (Kasky v. Nike, Inc. (2002) 27 Cal.4th 939, 951, 119 Cal.Rptr.2d 296, 45 P.3d 243.)

To state a cause of action for a false advertisement claim, a plaintiff must show (1) that a statement or advertisement was made by a person with intent to dispose of real property, (2) that the statement or advertisement is false or misleading, (3) the person making the statement knew or should have known that the statement was false or misleading, (4) that members of the public are likely to be deceived from a reasonable consumer standpoint, and (5) that the statement constituted a misrepresentation of a material fact. (Bus. Prof. Code, § 17500; Colgan v. Leatherman Tool Group, Inc. (2006) 135 Cal.App.4th 663, 679; Chapman v. Skype Inc. (2013) 220 Cal. App. 4th 217, 229 [a plaintiff only needs to allege a misrepresentation of material fact to satisfy the requirement of pleading actual reliance or causation in connection with a false advertising claim].) “The question whether consumers are likely to be deceived is a question of fact that can be decided on a demurrer only if the facts alleged in the complaint, and facts judicially noticed, compel the conclusion as a matter of law that consumers are not likely to be deceived.” (Chapman v. Skype Inc. (2013) 220 Cal. App. 4th 217, 226–27.)

Bartoumian argues that this cause of action fails because false advertising laws in California do not apply to private sale transactions and the FACC fails to allege any public advertising campaign, any advertisement directed to the public, any facts demonstrating statutory standing under Business & Professions Code section 17500, or any promotional activity directed to the public. (Demurrer, p. 6:5-8, 23-26.)

Here, the FACC states the following relevant factual allegations in support of the first cause of action: (1) Bartoumian's fraudulent representations formed the basis for the sale of the Property (FACC, ¶ 10); (2) Bartoumian hired a real estate agent that put the Property on the market as a single family, three bedroom and two bathroom home totaling 1,200 square feet built in 1990 on a 5 acre lot ((FACC, ¶ 11); (3) Bartoumian offered Etame the property for \$220,000 as a long time friend ((FACC, ¶ 12); (4) a few months after Etame tendered approximately \$40,000 to Bartoumian, a city inspector came to the Property and informed Etame the structure on the Property was an 800 foot car garage illegally divided as a house and did not have three bedrooms or two bathrooms (FACC, ¶ 14); (5) everything Bartoumian advertised about the house was false (FACC, ¶ 15); (6) Bartoumian and his real estate agent advertised and promoted the sale of the Property across multiple real estate websites nationwide, falsely describing the property as a single family home with three bedrooms, two bathroom, and 1,200 square feet in size; (7) Bartoumian's advertising campaign was knowingly deceptive, fraudulent, and misleading as it falsely represented the legal status and condition of the Property; (8) Etame discovered after purchase that the structure on the Property is not a livable home and is ineligible for residential use (FACC, ¶ 29); and (9) Bartoumian withheld critical information, including why he insisted the transaction take place without a real estate agent, why he did not mail the Agreement to Etame for review in advance, and why the signing process was rushed (FACC, ¶ 30).

Etame's lack of exhibits, documentation, or other evidence in support of these factual allegations is irrelevant at the pleading stage and in the face of a demurrer. Taking Etame's factual allegations as true, Etame has pleaded sufficient factual allegations to state a cause of action for his false advertisement cause of action. First, Etame has alleged that an advertisement was made by Bartoumian with intent to sell the real property at issue. While Defendant argues there is no statement in the FACC that there was an advertisement directed to the public, taken in context with Etame's allegations that Bartoumian advertised and promoted the sale of the Property across multiple nationwide real estate websites, and in light of the existence of a separate potential buyer, such a statement is unnecessary. (FACC ¶ 13.) Second, Etame has alleged that the advertised information was false in that it was advertised as a residential family home with specified details, when in reality, the structure on the Property is a car garage not permitted for residential use. Third, Etame has alleged that Bartoumian knew the advertisement was false and misleading when he posted the advertisements. Finally, Etame has alleged that Bartoumian's advertisement of the Property as a residential family home was false, as it is unsuitable and ineligible for residential use and is a car garage. In light of the other factual allegations and reasonable context provided in the FACC, the facts alleged constitute a false representation of a material fact relating to the Property.

Further, whether the reasonable consumer is likely to be deceived is not a question that can be decided on a demurrer unless the facts alleged in the complaint, and facts judicially noticed, compel the conclusion as a matter of law that consumers are not likely to be deceived. (Chapman, supra, 220 Cal. App. 4th at 226–27.) That is not the case here. The facts alleged by Etame in the FACC do not compel a conclusion that consumers are not likely to be deceived when presented with an advertisement on large, national real estate websites, listed by a real estate agent, advertising a property as a single family home. As such, whether the average consumer would be deceived is not a question this Court will address on demurrer.

Taken together, as true and in context, the factual allegations pleaded by Etame in the FACC are sufficient to constitute a cause of action for false advertisement of the property.

ii. Claims Barred By the Written Contract Attached to Complaint

Bartoumian argues that because there is an operative written contract, the Agreement, which states the Property was to be sold "AS IS", the language of the contract controls and the Court should disregard any allegations inconsistent with the judicially noticeable contract provisions in the Agreement. (Demurrer, p. 6:10-16.) Bartoumian asserts that the operative contract is attached to his Complaint.

To start, this Court has not taken judicial notice of the contractual provisions of the Agreement, nor has Bartoumian requested it to. The FACC itself does not contain a claim for breach of contract, attach a contract, or concede in any way that the contract attached to Bartoumian's Complaint is the operative contract between the parties. It is correct, as Bartoumian asserts, that where a complaint alleges terms of a contract that vary from the written contract, the provisions of the contract control. But this rule applies only where the contract has been attached to the complaint as an exhibit, or where it is otherwise established that the parties agree the document in question is the operative contract. (*Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137 (1995) (reversing trial court's decision to take judicial notice of contract, holding that "the existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision (h). . . [A] court cannot simply look at a piece of paper and conclude as a matter of law it is a contract between the parties," because doing so requires the kind of fact-finding appropriate for trial, not a demurrer hearing).) [

The Court must only look to the face of Etame's FACC and take all allegations as true, drawing all reasonable inferences in favor of the pleading party without considering or weighing evidence presented. Further, the defects must be plain on the face of the complaint. Here, as established, Etame has sufficiently pleaded facts to support a cause of action for false advertising of the Property.

Accordingly, Bartoumian's demurrer as to the first cause of action for false advertisement is **OVERRULED**.

c. Second Cause of Action – Fraud

Bartoumian also argues in his supporting memorandum of points and authorities that Etame's second cause of action for fraud fails as fraud must be pled with specificity, and the general allegations pleaded by Etame are insufficient. (Demurrer, p. 7:10-13.)

However, Bartoumian demurred only to the SACC in its entirety and failed to demur to the second cause of action on an individual basis. Because this Court overrules Bartoumian's Demurrer as to the first cause of action, this Court cannot entertain Bartoumian's arguments attacking the Second Cause of Action. (*Mills v. Mills* (1956) 147 Cal.App.2d 107, 124 ("A general demurrer to a complaint containing more than one count should be overruled if there is a good count stating a cause of action. If it is erroneously sustained, the judgment of dismissal should be reversed."))

d. Punitive Damages Claim

Bartoumian argues the punitive damages claim must be stricken from the FACC because the FACC states his conduct was "willful" and "despicable", which merely constitutes conclusory language, insufficient to satisfy the requirement that oppression, fraud, or malice be pled with specificity. (Demurrer, p. 13:1-4.) The Court notes that Bartoumian's request to strike the punitive damages claim is improperly raised in the present Demurrer. A motion to strike a form of damages is properly raised in a motion to strike, which Bartoumian did not file here.

Further, Etame requests general, compensatory, incidental, and consequential damages according to proof, statutory penalties where permitted by law, reasonable attorneys' fees and costs as permitted, punitive damages, costs of the suit, and such other and further relief as the Court may deem just and proper. (FACC ¶ 44.)

Bartoumian does not argue Etame is categorically barred from all forms of requested relief, but only argues he is immune from the imposition of punitive damages. Because Etame has requested various forms of relief arising from his two causes of action, striking the entirety of either based on one form of relief requested is improper. (See *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047 [demurrer improperly sustained where allegations of complaint were insufficient to establish plaintiff's entitlement to one category of damages because a demurrer cannot rightfully be sustained to a particular type of damage or remedy].)

Accordingly, Bartoumian's request to strike the punitive damages claim is DENIED.

e. Leave to Amend

Bartoumian's Demurrer is overruled, rendering this issue moot.

V. Conclusion

Plaintiff Hagop Bartoumian's Demurrer to the Verified First Amended Cross-Complaint is OVERRULED.

Plaintiff is to file an Answer to the First Amended Cross-Complaint within 20 days of this Order.